

12. 9:00 AM CASE NUMBER: C25-02242

CASE NAME: MECHANICS BANK VS. BHUPINDER LALLY

HEARING ON SUMMARY MOTION BY PLAINTIFF.

FILED BY: MECHANICS BANK

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **May 4, 2026, 9:00 am in Department 34.**

13. 9:00 AM CASE NUMBER: C25-02968

CASE NAME: PAMELA SWARTS VS. AMY PATTON

***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**

FILED BY: SWARTS, PAMELA

TENTATIVE RULING:

Plaintiff Jeffrey Swarts and plaintiff and defendant Pamela Swarts (“Moving Parties”) bring this motion to consolidate in an effort to consolidate this matter (C25-02968), with a case originally brought in small claims court (MSC25-0485), which was filed by plaintiffs and defendants Travis Patton and Amy Patton (“Opposing Parties”).

For the reasons set forth below, the motion to consolidate is GRANTED.

Background

Opposing Parties filed a small claims action on August 26, 2025, asserting that they executed a lease agreement with Pamela Swarts for the rental of real property (the “Property”). Opposing Parties paid the first month’s rent (\$6,600) and a security deposit (\$6,600) but allege that they soon learned that there was a severe rodent infestation, that was not disclosed, at the Property. They elected to terminate the lease and subsequently sought \$12,500 in small claims court, as a refund of their security deposit and first month’s rent.

Moving Parties filed an unlimited civil action on October 13, 2025, against Opposing Parties and defendant Carolyn Lehman (“Lehman”), asserting a claim against Opposing Parties for breach of contract and asserting claims against Lehman for intentional interference with prospective economic relations and defamation.

On December 30, 2025, the Court entered an order that pursuant to Code of Civil Procedure section 116.390, the small claims case would be transferred to the Superior Court. On January 27, 2026, the Court denied a motion for reconsideration of the December 30, 2025 order.

Legal Standard

Code of Civil Procedure section 1048 provides, “When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in